Litigation Memorandum

Newanforbi v. California Highway Patrol

Alameda County Superior Court Case No. 26CV191136
Subject: Form I-918 Supplement B certification; April 20, 2026 denial; traditional mandate; requested relief

Bottom line and recommended disposition

The motion should be framed as a traditional mandate challenge to a legally constrained certification decision, not as a demand that the Court adjudicate federal U-visa eligibility or impose officer liability. The strongest present remedy is to vacate Captain Serrato' s April 20, 2026 denial and issue a peremptory writ requiring CHP, through an authorized certifying official, to reconsider the April 9 request under current Penal Code section 679.10, using a properly authenticated record and a reasoned written decision. The writ should preserve CHP' s lawful factfinding discretion while prohibiting legal errors that the statute expressly forecloses.

Direct certification should remain an alternative, but only after express findings that: (1) Petitioner was the direct victim of unlawful criminal restraint, false imprisonment, or a substantially similar qualifying offense; (2) he was helpful, is being helpful, or is likely to be helpful, with the section 679.10(h) presumption applied unless rebutted; and (3) no reasonable lawful alternative remains for CHP. The current record strongly supports a material challenge to the denial, especially because CHP' s Form 202 attributes the unperformed walk-and-turn to Petitioner while the submitted recording transcript attributes the decision not to administer it to the officer' s concern about the uneven shoulder. It also supports scrutiny of the chronology and legal basis for the escalation from a welfare check to handcuffing, transport, and custody. But CHP disputes the officers' observations, the significance of the alcohol evidence, the arrest rationale, and the legality of custody. Those disputes presently leave more than one potentially lawful disposition. Under controlling mandate authority, that makes remand—not immediate certification—the safer judgment.

The proposed judgment should therefore grant the petition in part, set aside the April 20 denial, and direct a tightly controlled reconsideration within 30 days after service of the writ. If an essential factual dispute cannot be resolved on declarations and authenticated documents, the Court should use a narrow Code of Civil Procedure section 1090–1091 procedure, not a generalized trial of DUI liability, damages, or federal immigration eligibility.

1. Record and posture

The uploaded motion packet and merged matter record establish the following facts or positions without resolving disputed inferences. Petitioner submitted a pre-completed Form I-918, Supplement B and supporting materials to CHP on April 9, 2026. CHP admits receipt and admits that Captain Gerardo Serrato, acting as an authorized certifying official, denied the request on April 20, 2026. CHP also admits that it is a certifying entity and that Serrato acted in his official capacity. *Newanforbi_26CV191136_Writ_Motion_Packet.pdf*, Memorandum at 1–2; *Matter20_Merged_v3.pdf*, Verified Answer ¶ ¶ 2–3, 13–16, 58–61.

The challenged encounter occurred on November 1, 2024. CHP admits that officers approached a stationary Tesla on the I-580 shoulder for a welfare check and did not observe Petitioner driving. CHP admits that the encounter was substantially recorded by dashcam, that the open cup in the vehicle was identified as containing urine, that an empty Mike’s Hard Lemonade can was located, and that Petitioner denied consuming it. CHP also admits that officers did not tell Petitioner during the encounter that they smelled alcohol or that his speech was slurred or impaired, while acknowledging that the officer’s report later described an alcohol odor, slurred speech, and confusion. *Matter20_Merged_v3.pdf*, Answer ¶ ¶ 34–47.

CHP admits that Officer Meza-Gonzalez arrested Petitioner, transported him in handcuffs, and that Petitioner was later held at Santa Rita Jail from November 1 through November 5, 2024. No DUI charges were filed. CHP issued a detention certificate. *Id.*, Answer ¶ ¶ 38–42, 49. CHP denies that the custody was based solely on a voluntary-test refusal and denies that the report was false.

Two record conflicts matter most. First, Form 202 states: “Walk and Turn: Newanforbi chose not to perform this test and related it was difficult,” and later refers to poor field-test performance in the arrest analysis. The submitted transcript, by contrast, records Petitioner saying he thought he could do the walk-and-turn, followed by Officer Melano’s statement that the shoulder was uneven and that he would not administer that test. *Newanforbi_26CV191136_Writ_Motion_Packet.pdf*, Memorandum at 5–6; *Matter20_Merged_v3.pdf*, transcript approximately 01:10:14–01:10:30; Form 202 at AGO 000031–000032. If the native recording confirms the transcript, the discrepancy is a material reliability issue. It does not, standing alone, prove that no other basis supported the arrest.

Second, the transcript places an advised PAS request immediately before handcuffing. At approximately 01:10:33, the officer requested a preliminary alcohol screening test; the officer advised that it was not required and that Petitioner could refuse. At approximately 01:11:15, Petitioner refused; handcuffing followed shortly thereafter. *Matter20_Merged_v3.pdf*, transcript approximately 01:10:33–01:11:33. The legal significance is limited but important: the Court should not treat an exercise of the statutory

right to refuse a voluntary PAS as consciousness-of-guilt evidence or as a substitute for objective pre-refusal facts. *People v. Jackson* (2010) 189 Cal.App.4th 1461, 1465–1470.

2. Penal Code section 679.10: statutory analysis

A. CHP and Serrato are proper certifying actors

Section 679.10(a)(1) defines a certifying entity to include a state or local law-enforcement agency. Section 679.10(b)(1)–(2) defines a certifying official to include the head of the entity or a supervisory person specifically designated by the head. CHP admits that it is a certifying entity and that Serrato is a certifying official. The motion should treat those predicates as established rather than spending briefing capital on them. 1

B. The statute lists the alleged conduct, but does not make every detention qualifying

Section 679.10(c) adopts the federal definition of qualifying criminal activity and expressly lists "unlawful criminal restraint" and "false imprisonment." Section 679.10(d) also covers criminal offenses whose nature and elements are substantially similar to an activity listed in subdivision (c), as well as attempts, conspiracies, and solicitations. This text defeats a denial based on the proposition that only a charged or convicted offense can qualify. It does not, however, make every detention, arrest, constitutional violation, or disputed use of force a qualifying offense. The threshold question remains whether the proven conduct satisfies the elements of one of the listed activities or a substantially similar offense.

The correct statutory sequence is therefore: identify the conduct; identify the candidate qualifying activity; apply its actual elements; determine whether Petitioner was a victim; and only then analyze helpfulness. "Helpful" is not a substitute for victimhood, and the presumption in subdivision (h) does not establish unlawful restraint.

C. "Shall certify" creates a mandatory consequence once predicates are established

Section 679.10(g)(1) provides that, upon a proper request, a certifying official "shall certify victim helpfulness" when the victim was a victim of qualifying criminal activity and has been, is being, or is likely to be helpful to its detection, investigation, or prosecution. The statute thus does not confer an unrestricted veto. CHP's better argument is not that it has unfettered discretion, but that the official must make the threshold legal and factual determination whether qualifying victimhood and helpfulness are established. Once those predicates are conclusively established, the statutory consequence is mandatory.

This distinction is central to the remedy. A court may compel CHP to apply the correct elements and may order certification if, after factual findings, certification is the only reasonable lawful result. But while material factual and legal questions remain about whether the restraint was unlawful and whether it fits a qualifying activity, a writ ordinarily may not substitute the court's preferred factual determination for the authorized official's bounded judgment. *Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442–446; *California Correctional Supervisors Organization, Inc. v. Department of Corrections* (2002) 96 Cal.App.4th 824, 827.

D. Helpfulness is presumed on this record unless rebutted by a specific request and refusal

Section 679.10(h) creates a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. The presumption is not rebutted merely by asserting that no investigation occurred or that Petitioner declined a different investigative act concerning suspected DUI. The relevant question is whether Petitioner refused or failed to provide reasonably requested assistance concerning the qualifying criminal activity.

Petitioner submitted a timeline, transcript, incident materials, complaints, and a certification request, and states that he remains willing to provide truthful information and reasonable assistance concerning the alleged restraint. CHP's Answer denies that an investigating entity requested information from him. *Newanforbi_26CV191136_Writ_Motion_Packet.pdf*, Memorandum at 9; *Matter20_Merged_v3.pdf*, Answer ¶ 57. On the present record, the presumption is a substantial point for Petitioner if victimhood is established. It is not, however, an independent basis for finding qualifying activity.

E. Denial reasons and no-prosecution rule

Section 679.10(i)(1) requires the certifying official to complete and sign the form and include specific details about the nature of the crime investigated or prosecuted and the victim's helpfulness or likely helpfulness. Section 679.10(i)(2) requires a written explanation if certification is denied. That explanation must include specific details of any reasonable cooperation requests and a detailed description of how the victim refused to cooperate.

The motion should distinguish a denial based on no qualifying criminal activity from a denial based on lack of helpfulness. If the April 20 letter denied only on the former ground, the subdivision (i)(2) cooperation-detail requirement is still relevant to the adequacy of the decision, but the Court should not invent a helpfulness defect that the letter did not assert. If the letter relied on lack of cooperation, it must identify the request and refusal with

specificity. A conclusory denial is vulnerable to vacatur; the remedy remains a new lawful decision unless all certification predicates are conclusively established.

Section 679.10(k)(1) expressly provides that a current investigation, filing of charges, apprehension of a suspect, case closure, prosecution, or conviction is not required. Section 679.10(k)(3) prohibits denial for enumerated reasons including criminal or immigration history, anticipated USCIS denial, extent of harm, inability to produce a crime report, or cooperation or refusal in a separate case. The writ should expressly prohibit reliance on those grounds. No-charge status is legally relevant only in the limited sense that it cannot be used as a statutory disqualification; it does not itself prove qualifying activity.

3. Element-by-element qualifying-activity analysis

A. False imprisonment under Penal Code section 236

Penal Code section 236 defines false imprisonment as "the unlawful violation of the personal liberty of another." California Supreme Court authority describes the elements in functional terms as intentional, nonconsensual confinement without lawful privilege, for an appreciable period, however short. *Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701, 715–716. The intent required is intent to confine, not an intent to injure. *Id.* at 716.

Confinement and lack of consent. The admitted handcuffing, transport in handcuffs, and custody support intentional confinement. The record also supports nonconsent: the encounter progressed from questioning and testing to handcuffing, transport, and jail detention. CHP does not dispute the physical custody itself. This is the strongest part of Petitioner's qualifying-activity theory.

Intent. The officers intentionally placed Petitioner in handcuffs and transported him. Nothing in the record suggests that the confinement was accidental. The intent element is therefore likely satisfied if the Court reaches the merits.

Unlawfulness or lack of privilege. This is the decisive disputed element. A detention or arrest supported by lawful authority is privileged; an intentional confinement without lawful privilege is not. The Court must evaluate authority at the time each escalation occurred, not rely on later-discovered information or later procedural events. A lawful welfare check may become a lawful investigative detention if specific, articulable facts create reasonable suspicion. A warrantless arrest generally requires probable cause under Penal Code section 836(a)(1), subject to applicable statutory exceptions. A later blood draw, warrant, no-charge outcome, or parole information cannot retroactively supply authority that was absent when the restraint began. See *People v. Sanders* (2003) 31 Cal.4th 318, 330–332.

The record presently supports competing inferences. Petitioner emphasizes the stationary vehicle, absence of observed driving, the urine identification, coherent answers and sign-

reading, no contemporaneous verbal statement about odor or slurred speech, the walk-and-turn discrepancy, and the immediate transition from PAS refusal to handcuffing. CHP relies on the officer's report describing alcohol odor, slurred speech, confusion, alcohol in the vehicle, and field-test observations. The Answer confirms that these report statements exist while disputing Petitioner's characterization of the recording and denying falsity. *Matter20_Merged_v3.pdf*, Answer ¶ ¶ 34–47. A court may find the report materially unreliable, but it should not treat the Answer's admissions as concessions that the officers perceived no odor or impairment signs.

Duration and manner. The handcuffing, transport, blood draw, and multi-day detention establish more than a momentary contact. They support the appreciable-confinement component if unlawfulness is found. The duration does not cure lawful authority, and it does not itself prove lack of authority.

B. Unlawful criminal restraint and Penal Code section 146(a)

Section 679.10(c)(18) expressly lists unlawful criminal restraint. The supplied research identifies Penal Code section 146(a) as a potentially substantially similar California offense because it addresses arrest or detention against a person's will by a public officer acting under color or pretense of legal authority without regular process or other lawful authority. The motion should present section 146(a) as an alternative substantially-similar theory under section 679.10(d), not as if section 146(a) were expressly named in section 679.10(c).

The factual application largely tracks false imprisonment: intentional restraint, against Petitioner's will, by public officers acting under color of authority, and without lawful authority if the Court rejects the asserted arrest basis. The substantial-similarity argument is strongest if CHP's denial treated "not charged" or "officers believed they had probable cause" as dispositive without applying the statutory elements. It is weaker if the Court concludes the record does not establish absence of lawful authority or if the official must first resolve disputed officer observations.

C. Direct victimhood

Section 679.10(o)(2) defines a direct victim as a person who suffered direct harm or was directly and proximately harmed as a result of the criminal activity. Petitioner alleges and CHP admits the challenged restraint was imposed directly on him. If the Court finds qualifying unlawful restraint or false imprisonment, direct victimhood follows. The direct-victim finding should not be confused with the separate ultimate federal requirements, including substantial physical or mental abuse and other U-visa elements that USCIS—not CHP or this Court—determines.

4. Arrest authority, PAS, and walk-and-turn

A. Stage-by-stage authority is required

The Court should require CHP to identify the legal basis and contemporaneous facts for each stage: the initial welfare contact; any vehicle-door opening or search; the investigative detention and field tests; the handcuffing and arrest; transport; and continued custody. The initial welfare check is not itself alleged as a standalone qualifying offense. Its significance is that the encounter began without observed driving and then escalated.

Penal Code section 836(a)(1) generally requires probable cause to believe a public offense was committed in the officer's presence for a warrantless arrest. Vehicle Code section 40300.5 creates specified exceptions for immediate warrantless DUI arrests. *Mercer v. Department of Motor Vehicles* (1991) 53 Cal.3d 753, 760–762, 768–770, emphasizes California's in-presence rule and holds that "driving" ordinarily requires volitional movement, though circumstantial evidence of movement or a statutory exception may matter. A stationary shoulder vehicle alone does not establish driving, obstruction, or a section 40300.5 exception. But *Mercer* does not foreclose every arrest arising from a stationary vehicle; CHP may rely on other properly proven facts or a valid exception.

The later mention of parole or a search condition appears in the transcript after the earlier vehicle-door openings. Later-acquired information cannot retroactively justify an earlier intrusion. *Sanders*, 31 Cal.4th at 330–332. The order should direct that each stage be evaluated on information actually known at that stage.

B. PAS refusal

Vehicle Code section 23612(h) characterizes a PAS used to establish reasonable cause as a field sobriety test and further investigative tool. Section 23612(i) requires the officer to advise the person of the right to refuse. In *People v. Jackson*, the First District held that admitting an advised PAS refusal as consciousness-of-guilt evidence was error because using the exercise of a statutory right to refuse would undermine that right. 189 Cal.App.4th at 1465–1470.

The motion should make the narrow argument that *Jackson* supports: CHP may not treat Petitioner's advised refusal as consciousness-of-guilt evidence or as a substitute for objective pre-refusal facts. *Jackson* did not hold that every PAS refusal is irrelevant to every possible custody question, and it did not decide the full probable-cause issue in this case. The Court should therefore determine what facts existed before the refusal and whether those facts independently supported continued detention or arrest. The refusal's temporal proximity is relevant to chronology, but the refusal itself should not carry adverse incriminating weight.

CHP may cite *Espinoza v. Shiomoto* (2017) 13 Cal.App.5th 1075, 1081–1088, and *People v. Bolourchi* (2024) 103 Cal.App.5th 243, 254–270. Those decisions concern stronger factual records and, importantly, ordinary field-sobriety refusals or post-arrest implied-consent

chemical-test refusals. They do not displace *Jackson*'s PAS-specific treatment of an advised statutory right to refuse. CALCRIM No. 2130 likewise concerns the post-arrest chemical test under section 23612, not the prearrest voluntary PAS. The distinction should be made expressly rather than claiming that no refusal can ever be considered.

C. Walk-and-turn

The walk-and-turn discrepancy is the best ground for vacatur because it is specific, objectively checkable, and potentially material to the custody rationale. The transcript records Petitioner expressing willingness to attempt the test and Officer Melano declining to administer it because the shoulder was uneven. Form 202 attributes nonperformance to Petitioner and later invokes poor FST performance.

If the native recording confirms the transcript, CHP cannot fairly treat the walk-and-turn as Petitioner's failed or refused test. The error matters because it changes who decided not to administer the test and whether there was any walk-and-turn performance at all. It does not establish that every other field-test observation was favorable, does not negate the reported HGN or modified Romberg observations, and does not alone prove lack of probable cause. The order should require the agency to identify what it credits, what facts were available before handcuffing, and whether the walk-and-turn account materially affected the certification denial.

5. Traditional mandate and remedy

Code of Civil Procedure section 1085 authorizes a writ to compel performance of an act specially enjoined by law or to enforce a right from which a party is unlawfully precluded. Section 1086 requires a verified petition by a beneficially interested party and no plain, speedy, and adequate ordinary remedy. Those threshold requirements are satisfied in theory by the statutory certification request and the absence of an ordinary damages remedy that would supply the requested certification decision.

The governing rule is *Common Cause*: mandate may compel an official to exercise discretion and to exercise it under a proper interpretation of law, but ordinarily may not compel the official to exercise discretion in a particular manner. 49 Cal.3d at 442–443. The court may correct an abuse of administrative discretion, but it may not substitute its own judgment where a lawful range of choices remains. *State v. Superior Court* (1974) 12 Cal.3d 237, 247–248; *People ex rel. Younger v. County of El Dorado* (1971) 5 Cal.3d 480, 490–491.

The exception is important here. Where the statutory predicates are conclusively established and only one lawful result remains, direct compulsion may be appropriate. *California Correctional Supervisors Organization*, 96 Cal.App.4th at 827. Section 679.10's "shall certify" language strengthens that argument after the predicate findings are made. It does not eliminate the requirement that the predicates be established.

Shepherd v. Superior Court (1976) 17 Cal.3d 107, 118, and *Anderson v. Phillips* (1975) 13 Cal.3d 733, 737, support a writ requiring the agency to exercise discretion under the correct legal standard. *No Oil, Inc. v. City of Los Angeles* (1974) 13 Cal.3d 68, 79–82, supports correction when an agency failed to proceed as law requires and permits remand for clarification of ambiguous findings, while cautioning against post hoc rationalization of an already-made decision.

The motion should not rely on Code of Civil Procedure section 1094.5 as the primary procedural vehicle. The surviving claim is best characterized as traditional mandate under sections 1085–1086. Section 1094.5(f) can be cited only as a useful model for the principle that reconsideration must preserve legally vested discretion. Section 1094’s noticed-motion route applies if no triable material fact remains; section 1090 is the better mechanism if the return raises an essential factual question.

6. Evidence and authentication

The current declaration authenticates facts within Petitioner’s personal knowledge and his preparation of the transcript. It does not, by itself, authenticate CHP’s native MP4 files, establish the recording-system operation, show chain of custody, prove file integrity, establish the dashcam clock’s accuracy, or authenticate every narrative statement in Form 202.

Evidence Code section 1400 requires evidence sufficient to sustain a finding that the writing is what the proponent claims; section 1401 requires authentication before the writing or secondary evidence is received. Evidence Code section 260 defines an electronic duplicate as an accurate reproduction. Sections 1521 and 1552–1553 may assist with secondary evidence and computer or video representations, but they do not make an unauthenticated native MP4 self-proving. Evidence Code section 1280 may support an official incident report only if the public-duty, contemporaneity, and trustworthiness foundation is established; it does not prove every narrative assertion automatically.

California Rules of Court, rule 2.1040(b), permits a party-prepared transcript to accompany an electronic recording. The recording itself is the evidence; the transcript is a locating and hearing aid. The Court should therefore require a custodian, system administrator, records officer, technically knowledgeable officer, or stipulation addressing: the recording device and system; the file names and segments; extraction and preservation; whether the offered files are native or verified duplicates; any processing or re-encoding; the two files marked “no signal”; and the relationship between displayed timestamps and wall-clock time. A hash or equivalent integrity proof is a useful, though not necessarily exclusive, method of addressing file identity and preservation.

The native recording should control conflicts with the transcript. Internal sequence can be established by playback even if absolute clock accuracy is not. Wall-clock times should be

treated as approximate unless supported by clock-setting, synchronization, or corroborating agency records. The Court should identify material playback start and stop points and state any ruling on disputed words, speakers, actions, or timestamps.

Under *People v. Dawkins* (2014), ordinary testimony about an automated recording system and downloading, combined with the recording's contents, may support authentication. The decision does not eliminate the need for a foundation tied to this dashcam system. The proposed hearing should be narrow and should not become a full trial about officer civil liability or federal immigration eligibility.

Traditional mandate may receive additional evidence when necessary to decide whether the agency proceeded lawfully. *No Oil*, 13 Cal.3d at 79–80 & fn. 6. CHP may invoke *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, 578–579, which limits extra-record evidence in quasi-legislative review and bars new evidence used merely to contradict agency policy judgment. The response is that this is an individualized certification decision and the proposed evidence concerns authentication and correction of a material incident-record error, not policy review. The Court should expressly limit any evidentiary use to that purpose.

7. Strongest CHP opposition and responses

Opposition 1: Certification is conditional, not automatic

CHP's strongest argument is that section 679.10 requires qualifying victimhood and helpfulness; it does not convert every detention into false imprisonment or unlawful criminal restraint. That argument is correct as far as it goes. The response should concede that the Court must determine the actual elements, while emphasizing that the statute's express listing of false imprisonment and unlawful criminal restraint, mandatory "shall certify" language, helpfulness presumption, and no-prosecution rule prohibit CHP from using a heightened or incorrect standard.

Opposition 2: Disputed facts preclude direct certification

CHP can point to disputes about odor, speech, confusion, the can, field tests, PAS refusal, driving, probable cause, and the legal basis for custody. This is the principal obstacle to direct certification. Petitioner should respond that the disputed walk-and-turn account and the chronological record at least require vacatur if the denial materially relied on an inaccurate premise. The response should not convert that point into a claim that the discrepancy alone compels certification.

Opposition 3: The walk-and-turn discrepancy is non-dispositive

CHP is right that one report discrepancy does not decide all arrest-authority questions. The answer is materiality, not automatic dispositiveness: if the agency counted a test Petitioner never refused or performed as poor performance, the error can undermine the stated rationale and require reconsideration. The Court should direct the agency to reassess the remaining pre-handcuff facts under the correct legal standards.

Opposition 4: The April 20 letter was sufficient

CHP may argue that the letter simply determined no qualifying activity and was not required to address every record detail. The answer is that section 679.10(i)(2) requires a written explanation, and a denial cannot rest on a materially false factual premise, a demand for charges or conviction, a prohibited reason, or a failure to apply the statutory definitions. If the Court finds the letter adequate on its face but the underlying determination materially erroneous, the remedy remains vacatur and reconsideration rather than automatic certification.

Opposition 5: PAS refusal and other evidence support lawful arrest

CHP may rely on the report' s odor, slurred-speech, confusion, alcohol-can, and field-test assertions and distinguish *Jackson*. The response should be precise: the Court should consider the totality of properly established pre-refusal facts, but it should not give the advised PAS refusal an adverse consciousness-of-guilt inference or use it as a substitute for those facts. The later blood result and post-arrest chemical-test events cannot retroactively establish prearrest authority without a proper foundation.

Opposition 6: The Court cannot conduct a collateral DUI trial

This is a valid remedial concern. The motion should seek only the factual findings necessary to determine whether CHP applied section 679.10 lawfully. If section 1090 is used, the order should distinctly state the factual questions and exclude damages, dismissed claims, federal eligibility, generalized policy, and officer liability. The Court should not order CHP to deny; neutral remand is the appropriate alternative.

8. Authority audit

The following authorities should be presented with their status and limits clearly identified:

1. **Binding statutory authorities:** Penal Code sections 146(a), 236, 679.10, and 836; Vehicle Code sections 23612 and 40300.5; Code of Civil Procedure sections 1085–1086, 1090–1094, and, by analogy only, 1094.5; Evidence Code sections 1400–1401, 1521, 1552–1553, and 1280.

2. **Binding California Supreme Court authorities:** *Common Cause*, 49 Cal.3d at 442–446 (mandate and discretion); *Fermino*, 7 Cal.4th at 715–716 (false-imprisonment elements); *Mercer*, 53 Cal.3d at 760–762, 768–770 (driving and DUI arrest authority); *Sanders*, 31 Cal.4th at 330–332 (no retroactive justification); *No Oil*, 13 Cal.3d at 79–82 (lawful procedure, remand, no post hoc rationalization); *State*, 12 Cal.3d at 247–248; *Shepherd*, 17 Cal.3d at 118; *Anderson*, 13 Cal.3d at 737.
3. **Published appellate authorities:** *People v. Jackson*, 189 Cal.App.4th at 1465–1470 (advised PAS refusal cannot be used as consciousness-of-guilt evidence); *California Correctional Supervisors Organization*, 96 Cal.App.4th at 827 (single lawful outcome); *People v. Dawkins* (2014) (recording authentication); *Espinoza*, 13 Cal.App.5th at 1081–1088 (distinguishable stronger record and different refusal context); *Bolourchi*, 103 Cal.App.5th at 254–270 (post-arrest chemical-test refusal, distinguishable).
4. **Persuasive federal materials:** 8 U.S.C. § 1101(a)(15)(U)(iii) and 8 C.F.R. § 214.14 define the federal U-visa framework and similar activity; the USCIS U Visa Law Enforcement Resource Guide and Policy Manual are persuasive administrative guidance, not controlling California law. They support the propositions that certification is not the final immigration adjudication and that charges, prosecution, and conviction are not required, but they do not authorize a California court to order federal status.
5. **Nonbinding implementation guidance:** California Attorney General DLE-2015-04 is useful only as persuasive implementation guidance. Its former timing discussion should not be used over current section 679.10(j), which requires processing within 30 days, subject to statutory exceptions.

9. Recommended revised motion structure

The motion should be reorganized as follows:

1. **Requested disposition and conditional remedy.** State at the outset that the primary request is vacatur and controlled reconsideration, with direct certification only if the Court finds every predicate and a single lawful outcome.
2. **Undisputed procedural facts and precise disputes.** Separate admissions from disputed report assertions. Identify the walk-and-turn conflict, PAS chronology, and stage-by-stage authority issue.
3. **Statutory framework.** Quote or accurately paraphrase sections 679.10(c), (d), (g), (h), (i), (j), (k), and (o), then distinguish qualifying activity, victimhood, and helpfulness.
4. **Qualifying activity.** Apply the elements of section 236 false imprisonment and the alternative section 146(a)/substantially-similar theory. Make unlawfulness the central disputed element.

5. **Arrest authority and chronological facts.** Apply sections 836 and 40300.5, *Mercer*, *Wells*, and *Hawkins* to the facts actually known before handcuffing.
6. **PAS and walk-and-turn.** Use *Jackson* narrowly. Present the walk-and-turn discrepancy as a material reliability error, not automatic proof of no probable cause.
7. **Mandate remedy.** Apply *Common Cause*, *State*, *No Oil*, *Shepherd*, *Anderson*, and *CCSO* to distinguish remand from direct certification.
8. **Evidence protocol.** Request authentication of the native files, use of the transcript only as an aid, and a narrow section 1090 procedure if essential facts remain disputed.
9. **Proposed findings and operative language.** Provide separate direct-certification and remand findings, then a judgment, writ, and limited evidentiary order.

10. Proposed findings supporting direct certification

Direct certification should be requested only conditionally. The Court would need to find substantially the following:

1. CHP is a certifying entity under section 679.10(a)(1), and Serrato or another designated official is authorized under subdivision (b).
2. Petitioner was the direct victim of the restraint at issue.
3. Officers intentionally handcuffed, transported, and confined Petitioner against his will.
4. The authenticated native recording and other admissible evidence establish that the restraint was without lawful privilege or authority at the relevant stages.
5. The proven conduct satisfies false imprisonment under section 236, unlawful criminal restraint under section 679.10(c)(18), or a substantially similar offense under subdivision (d), including the alternative section 146(a) theory if applicable.
6. The Court has considered only facts known at the time of each restraint and has not relied on later-discovered parole information, later blood results, no-charge status, or other retrospective substitutes.
7. Petitioner has been helpful, is being helpful, or is likely to be helpful concerning detection, investigation, or prosecution of the qualifying activity; alternatively, the section 679.10(h) presumption applies and has not been rebutted by a specific refusal or failure to provide reasonably requested assistance.
8. No denial ground prohibited by section 679.10(k)(3) supports refusal.
9. The absence of charges, prosecution, or conviction is not treated as a prerequisite.
10. After these findings, no reasonable lawful alternative remains for CHP other than completing and forwarding Form I-918, Supplement B under section 679.10(g)(1) and (i)

(1).

Absent all of these findings, the Court should not order direct certification.

11. Proposed findings supporting remand

The stronger present findings are:

1. The April 9 request and April 20 denial are established, and CHP and Serrato are proper statutory actors.
2. Section 679.10 requires application of the actual qualifying-activity definitions and separately requires analysis of victimhood and helpfulness.
3. The record contains a material conflict between Form 202's account of the walk-and-turn and the authenticated native recording, if credited, concerning who decided not to administer the test and whether the agency later treated the nonperformance as Petitioner's poor performance.
4. The record contains disputed factual and legal questions about the contemporaneous authority for the welfare contact, investigative detention, testing, handcuffing, arrest, transport, and continued custody.
5. An advised PAS refusal under Vehicle Code section 23612(h)–(i) may not be treated as consciousness-of-guilt evidence or as a substitute for objective pre-refusal facts under *Jackson*, while the rest of the chronology remains subject to lawful evaluation.
6. The April 20 denial is unlawful to the extent it applied an incorrect qualifying-activity standard, relied materially on an inaccurate factual premise, relied on a prohibited or nonexistent no-prosecution requirement, or failed to satisfy section 679.10(i)(2) when helpfulness was a stated basis.
7. Because material factual evaluation remains, the Court does not presently find that certification is the only lawful outcome.
8. The denial must therefore be vacated and remanded to an authorized certifying official for reconsideration under the current statute and the Court's findings.

12. Proposed judgment and writ language

A. Judgment

> The Court enters judgment for Petitioner on the surviving traditional-mandate claim to the extent stated herein. CHP is a certifying entity under Penal Code section 679.10(a)(1), and Captain Gerardo Serrato acted as an authorized certifying official under subdivision (b). Petitioner requested Form I-918, Supplement B certification on April 9, 2026. CHP

> denied the request on April 20, 2026.Penal Code section 679.10 includes unlawful criminal restraint and false imprisonment as qualifying criminal activities and requires certification when the statutory predicates in subdivision (g)(1) are established. The statute does not require a current investigation, arrest of a suspect, charges, prosecution, or conviction, and it prohibits the denial reasons listed in subdivision (k)(3).The Court finds that the April 20 denial cannot stand to the extent it rested on a material factual or legal error identified in this judgment, including failure to evaluate the actual elements of qualifying activity, material reliance on an inaccurate account of the walk-and-turn, or failure to apply the statutory helpfulness and written-denial requirements. The Court does not presently find that every certification predicate is conclusively established or that certification is the only reasonable lawful outcome.The April 20 denial is set aside. A peremptory writ shall issue requiring CHP, through an authorized certifying official, to reconsider Petitioner’ s April 9 request and issue a new written determination within 30 days after service of the writ, unless a different statutory deadline applies.

B. Operative writ commands

> 1. Reconsider the April 9 request under Penal Code section 679.10(c), (d), (g), (h), (i), (j), and (k), using the statutory definitions in effect at the time of reconsideration.
> 2. Separately analyze qualifying criminal activity, direct victimhood, and helpfulness. Apply the rebuttable presumption in section 679.10(h) unless rebutted by evidence of refusal or failure to provide information or assistance reasonably requested concerning the qualifying activity.
> 3. Consider the authenticated native recording and other properly authenticated evidence. Treat the party-prepared transcript as a locating or hearing aid under California Rules of Court, rule 2.1040(b), not as conclusive proof where the native recording differs.
> 4. Make stage-specific findings concerning the legal authority and contemporaneous facts for the welfare contact, investigative detention, testing, handcuffing, arrest, transport, and continued custody.
> 5. Do not require an arrest of a suspect, charges, prosecution, conviction, current investigation, or particular case status. Do not rely on the prohibited reasons in section 679.10(k)(3), including immigration history, anticipated USCIS denial, extent of harm, inability to produce a crime report, or separate-case cooperation.
> 6. Do not treat the advised PAS refusal as consciousness-of-guilt evidence or as a substitute for objective facts known before handcuffing. Address the walk-and-turn discrepancy expressly and state whether it materially affects the qualifying-activity determination.

7. If certification is denied on helpfulness grounds, provide the written explanation required by section 679.10(i)(2), including the specific reasonable cooperation request and a detailed description of the alleged refusal.
8. File a verified compliance return within 45 days after service of the writ, attaching the new determination or completed certification, subject to lawful redactions, and identifying how each writ command was followed.
9. The Court retains jurisdiction solely to assess compliance. The writ does not confer U-nonimmigrant status, decide federal eligibility, adjudicate damages, or determine officer criminal or civil liability.

C. Limited evidentiary order under sections 1090–1091

If the Court finds that an essential factual question cannot be resolved on the papers, the order should state distinctly:

> The factual questions to be tried or otherwise determined are limited to: (1) authentication, identity, completeness, and integrity of the native CHP recording files; (2) what the native recording shows and says concerning the proposed walk-and-turn, the officer’ s stated reason not to administer it, the PAS request and refusal, and the sequence preceding handcuffing; (3) the material contemporaneous facts actually known to the officers before handcuffing and the legal authority asserted for each escalation; (4) whether the disputed walk-and-turn account materially informed the April 20 denial; and (5) helpfulness only if the Court first finds qualifying victimhood.The proponent of the recording shall establish the producing device or system, file identity, extraction and preservation, any processing or re-encoding, and the basis for relating displayed times to wall-clock time. The native recording controls over a conflicting transcript. The transcript may be used as a locating aid. The hearing shall not address damages, dismissed claims, federal immigration eligibility, privileged internal deliberations, generalized policy, or officer liability except to the limited extent unavoidable to decide the distinctly stated questions.

13. Prioritized revision checklist

1. Lead with vacatur and controlled reconsideration; make direct certification expressly conditional on a single-lawful-outcome finding.
2. Quote the current section 679.10(g)(1), (h), (i)(2), (j)(1), and (k) text accurately. Do not state that certification is automatic upon any detention.
3. Separate qualifying activity, victimhood, and helpfulness. Explain that helpfulness cannot establish the underlying offense.

4. Treat section 146(a) as an alternative substantially-similar theory under section 679.10(d), not as a crime expressly listed in subdivision (c).
5. Replace any categorical PAS argument with the narrower *Jackson* proposition: no consciousness-of-guilt inference and no substitution for objective pre-refusal facts.
6. Present the walk-and-turn conflict as a material reliability error requiring reconsideration, not as conclusive proof of no probable cause.
7. Identify the officer-reported odor, slurred speech, confusion, field-test, can, and other facts as disputed or qualified; do not turn CHP's admissions about what officers said aloud into admissions that no such observations occurred.
8. Use *Mercer* to require proof of actual driving or a valid statutory exception, but acknowledge that *Mercer* does not foreclose every arrest from a stationary vehicle.
9. Keep the later blood result, warrant, parole information, and no-charge outcome in their proper chronological and legal roles; do not use them as retroactive proof or disproof of prearrest authority.
10. Add a native-recording foundation protocol covering system operation, file identity, extraction, integrity, the two "no signal" files, clock basis, and verified duplicates.
11. State that the recording—not the transcript—is the evidence under rule 2.1040(b), with transcript disputes resolved by playback and rulings on the record.
12. Explain why the case is traditional mandate under sections 1085–1086 and use section 1094's noticed-motion shortcut only if no triable material fact remains.
13. Reserve section 1090–1091 for distinctly stated essential factual questions; exclude a collateral DUI or damages trial.
14. Do not seek a remand directing denial. Ask for neutral reconsideration under the correct legal framework.
15. Require a 30-day decision and 45-day verified compliance return, subject to any statutory exception under section 679.10(j).

References

[1] California Penal Code section 679.10
[2] California Penal Code section 236
[3] California Penal Code section 146
[4] California Penal Code section 836
[5] California Vehicle Code section 40300.5
[6] California Vehicle Code section 23612
[7] California Code of Civil Procedure section 1085

[8] California Code of Civil Procedure sections 1085–1094
[9] California Evidence Code section 1400
[10] California Evidence Code section 1401
[11] California Evidence Code section 1521
[12] California Evidence Code section 1280
[13] California Rules of Court rule 2.1040
[14] California Rules of Court rule 3.1306
[15] Common Cause v. Board of Supervisors
[16] Fermino v. Fedco, Inc.
[17] Mercer v. Department of Motor Vehicles
[18] People v. Sanders
[19] No Oil, Inc. v. City of Los Angeles
[20] State v. Superior Court
[21] Shepherd v. Superior Court
[22] Anderson v. Phillips
[23] California Correctional Supervisors Organization v. Department of Corrections
[24] People v. Jackson
[25] People v. Dawkins
[26] Espinoza v. Shiomoto
[27] People v. Bolourchi
[28] 8 U.S.C. section 1101(a)(15)(U)
[29] 8 C.F.R. section 214.14
[30] California Evidence Code section 260
[31] California Evidence Code section 1552
[32] California Evidence Code section 1553
[33] Western States Petroleum Assn. v. Superior Court
[34] USCIS U Visa Law Enforcement Resource Guide
[35] USCIS Policy Manual, Volume 3, Part C, Chapter 2
[36] California Attorney General DLE-2015-04 bulletin

Record sources: Matter20_Merged_v3.pdf and Newanforbi_26CV191136_Writ_Motion_Packet.pdf.